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#12

PASMANT ET AL. v. BREA WHITTIER LLC ET AL.

CASE NO.: 23NWCV03926

HEARING: Tuesday, July 7, 2026, at 9:30 AM

I.

Defendant BREA WHITTIER LLC dba

BROOKDALE CENTRAL WHITTIER Demurrer is SUSTAINED with 30 days leave to amend.

II.

Defendant BREA WHITTIER LLC dba

BROOKDALE CENTRAL WHITTIER Motion to Strike is DENIED as MOOT.

Moving Party to give notice.

Background

On December 4, 2023, Plaintiff ANDREW PASMANT, individually and as successor-in-interest to GILBERTO PASMANT, ("Plaintiff") filed this elder abuse action against Defendants BREA WHITTIER LLC dba BROOKDALE CENTRAL WHITTIER; ELDERCARE CORP. dba ECHO HOSPICE OF ORANGE COUNTY; SO CAL POST ACUTE HOLDINGS; LLC dba SOCIAL POST-ACUTE CARE; ROBERT PASMANT; RONALD PASMANT; YVONEE MORENO and DOES 1 through 50, inclusive.

On April 19, 2024, Plaintiff filed a First Amended Complaint. ("FAC"). The FAC adds ANDREW PASMANT, RONALD PASMANT, and YVONEE MORENO as Plaintiffs.

On March 13, 2026, Plaintiffs filed the operative Second Amended Complaint ("SAC").

On April 8, 2026, Plaintiffs filed a Doe Amendment, designating Doe 1 as Defendant BROOKDALE SENIOR LIVING.

Plaintiffs' SAC alleges the following causes of action:

1. Elder Abuse/Neglect;
2. Professional Negligence;
3. Wrongful Death;
4. Negligent Infliction of Emotional Distress; and
5. Violation of Patient's Rights

On May 27, 2026, Defendant BROOKDALE SENIOR LIVING, Doe 1, ("Defendant") filed the instant Demurrer and Motion to Strike.

First Cause of Action – Elder Abuse/Neglect

To plead elder abuse, the plaintiff must allege "facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care [citations]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [citations]; and (3) denied or withheld goods or services necessary to meet the elder or

dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citations]." (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406-07.) "The plaintiff must also allege . . . that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering." (Id. at 407.)

"[T]he facts constituting the neglect and establishing the causal link between the neglect and the injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims." (Id. (quoting Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790).)

Defendant contends Plaintiffs' Elder Abuse allegations are founded solely on generalized allegations and fail to attribute any wrongful conduct to Defendant. Here, Plaintiffs allege that staff repeatedly chose not to provide decedent: (1) with needed aid in consumption of food and fluids, (2) with needed aid in toileting and hygiene, (3) with close supervision of the state the decedent's skin, (4) with need aid in ambulation, bed mobility, repositioning, and pressure relief. (SAC ¶13(a)-(d).)

The Court finds Plaintiffs failed to plead their Elder Abuse claim with particularity. The Court recognizes Plaintiffs new allegations regarding "Brookdale's" conduct. Those allegations are sufficient to plead an Elder Abuse claim.

However, Plaintiffs sue two separate "Brookdale" entities. Plaintiffs' SAC designates Defendant BREA WHITTER LLC dba BROOKDALE CENTRAL WHITTER as "BROOKDALE". (SAC ¶ 2.) Plaintiffs' SAC does not designate demurring Defendant BROOKDALE SENIOR LIVING as "BROOKDALE."

Rather, Plaintiffs SAC does not identify any misconduct from Defendant Brookdale Senior Living. Indeed, the Court is unable to discern how Brookdale Senior Living is involved in the instant case. Plaintiffs must plead facts demonstrating Defendant Brookdale Senior Living's potential misconduct.

The Court believes Plaintiffs can amend their SAC to fix this defect and thus grants 30 days leave to amend. Defendant's Demurrer is SUSTAINED against Plaintiffs' First Cause of Action for Elder Abuse/Neglect.

Fourth Cause of Action – Negligent Infliction of Emotional Distress

A claim for negligent infliction of emotional distress is not an independent tort, but the tort of negligence. (*Molien v. Kaiser Foundation Hospitals* (1980) 27 Cal 3d 916, 928.) Accordingly, “the traditional elements of duty, breach of duty, causation, and damages apply.” (*Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) A plaintiff may recover emotional distress damages suffered because of injury to another when the Plaintiff was (1) a bystander, or (2) a direct victim. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1071.)

Further, under a bystander theory, a Plaintiff must show:

(1) that they are closely related to the injured victim, (2) they were present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim, and (3) as a result suffers serious emotional distress. (*Bird v. Saenz* (2002) 28 Cal.4th 910, 915.) The requirement that a Plaintiff be contemporaneously aware of the injury-producing event does not require visual perception of an impact on the victim. (*Id.* at 916.) A Plaintiff may recover based on an event perceived by other sense so long as the event is contemporaneously understood as causing injury to a close relative. (*Ibid.*)

Plaintiffs allege, “Plaintiffs are children of decedent, and thus were closely related to him. Plaintiffs regularly visited decedent during the time decedent was resident at defendants’ facilities and under defendants’ care, and thus was present during the injury-producing events at or near the time they occurred and was then aware of these injury-producing events and their effects, which occurred through defendants’ wrongdoing, and was aware that these events and their effects were causing injury to decedent.” (SAC ¶ 32.)

Plaintiffs also allege, “decedent’s family complained to BROOKEDALE staff on multiple occasions regarding the following: decedent being left in his urine and feces; urine being spilled on the carpet; the catheter bag overflowing with urine; not being turned on a regular basis; and poor housekeeping regarding cleanliness. As a general rule these complaints fell on deaf ears as the neglect continued.” (SAC ¶ 15(i).) However, as established above, these new allegations do not

The Court finds Plaintiffs' allegations are conclusory and insufficient. Plaintiffs' allegations fail to show they contemporaneously witnessed and were aware of the injury-producing event in this case. The Court notes that being "present during the injury-producing events at or near the time they occur" is insufficient. Indeed, in *Bird*, the Court held Plaintiffs could not recover where they witnessed their mother being rushed into surgery and the aftermath of said surgery but did not witness the injury-producing event. (*Id.* at 917.) Here, similarly, there are not enough facts alleged to show contemporaneous perception.

Moreover, Plaintiffs' reliance on *Keys* is misplaced. In *Keys*, the Court held that the injury-producing event was Defendant's lack of acuity and response to decedent's inability to breathe, a condition Plaintiffs observed and were aware was causing her injury. (*Keys v. Alta Bates Summit Medical Center* (2015) 235 Cal.App.4th 484, 490.)

Plaintiffs' new allegations demonstrate they perceived decedent's deteriorating condition. However, Plaintiffs do not plead they witnessed decedent's injury-producing event. Rather, Plaintiffs merely assert they were aware of "these injury-producing events" and "was aware that these events and their effects were causing injury to decedent." (SAC ¶ 32.)

Candidly, if Plaintiffs were aware of the "injury-producing events" and their effects, Plaintiffs would be able to plead facts demonstrating what those events are. Indeed, as it stands, the Court is unable to discern what injury-producing events Plaintiffs are referring to.

In *Keys*, Plaintiff demonstrated the injury-producing event related to decedent's inability to breathe. (*Id.*) The Court believes Plaintiffs can amend their SAC to more accurately describe what the "injury-producing event" in this case is.

Defendant's Demurrer is SUSTAINED against Plaintiffs' Fourth Cause of Action for Negligent Infliction of Emotional Distress with 30 days leave to amend.

Defendant's Motion to Strike is MOOT given the above ruling.

Conclusion

Defendants' Demurrer is SUSTAINED with 30 days leave to amend.

Defendant's Motion to Strike is DENIED as MOOT.